

# Neetu Singh v. Executive Engineer, Vidyut Nagariya Vitaran Khand, Bamrauli

Allahabad High Court · Division Bench · 17 June 2021 · Writ-C No. 11106 of 2021 · WRIT - C No. 11106 of 2021 · **Writ disposed; EE to decide pending 6.5 objection within 30 days.**

## HEADNOTE

Where a consumer has already invoked clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 on a tariff-classification grievance, the High Court will not examine the merits in writ jurisdiction and will instead direct the Executive Engineer to decide the pending objection within a fixed time.

## FACTUAL SUMMARY

Neetu Singh sought a writ of mandamus directing the Executive Engineer, Vidyut Nagariya Vitaran Khand, Bamrauli, Prayagraj, to treat her electric connection no. 6819396176 as covered under tariff LMV-9-(B)(i)(i) (metered individual residential construction). She had already invoked clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 by a representation dated 10 February 2021, then pending with the same Executive Engineer. Counsel for the petitioner and for the distribution licensee were heard on video conferencing.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.5

pending clause 6.5 objection as alternate remedy to a writ seeking tariff reclassification

### HOLDING

Where the consumer has already invoked clause 6.5 of the Supply Code, 2005 by a representation pending before the Executive Engineer on a grievance seeking reclassification of a connection under LMV-9-(B)(i)(i), the High Court will not dwell on the merits in a writ petition and will dispose of the petition by directing that Executive Engineer to decide the pending objection expeditiously, not later than thirty days from communication of the order. ¶ 1

## PRINCIPLE TAGS

### 6.5-pending-complaint-writ-remitted

The petitioner's clause 6.5 representation dated 10.02.2021 was already pending with the Executive Engineer, so the Court remitted that objection for decision within thirty days instead of examining the LMV-9-(B)(i)(i) classification on merits. ¶ 1

### clause-6.5-alternate-remedy-to-writ

Mandamus seeking tariff reclassification was disposed of without a merits decision because clause 6.5 of the Supply Code, 2005 already furnished the statutory route, which the petitioner had invoked. ¶ 1

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — WHETHER CONNECTION NO. 6819396176 IS CORRECTLY CLASSIFIED UNDER LMV-9-(B)(I)(I) (METERED INDIVIDUAL RESIDENTIAL CONSTRUCTION)

Left for the Executive Engineer to decide on the pending clause 6.5 objection dated 10.02.2021. ¶ 1